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Regulatory
Programs

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Service

Specialty
Crops
Program

DRAFT Commodity Specification for Tree Nuts

April 2025

DRAFT

Commodity Specification for Tree Nuts

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GENERAL

All products purchased by USDA must meet the requirements of the Solicitation/Invitation for Bid, the AMS Master Solicitation for Commodity Procurement, and this Commodity Specification. Any deviations from these requirements must be approved by the Contracting Officer, in writing.

U.S. Standards

Tree Nuts produced under this Commodity Specification must meet the requirements specified in the applicable United States Standards for Grades of Nuts (shelled or in shell as appropriate) effective on the date of the Solicitation/Invitation for Bid (IFB). The U.S. Standards are published separately and are incorporated herein and made a part of this Commodity Specification.

Exceptions to U.S. Standards

Exceptions to the U.S. Standards for the Department of Agriculture (USDA) Tree Nut purchases are found in Section II, Individual Commodity Specifications of this document.

Additional exceptions may be specified in the applicable Solicitation/IFB. Any exceptions contained in the applicable Solicitation/IFB shall have precedence over the requirements contained herein, for that Solicitation/IFB only.

Product Origin

Contractors must meet all domestic origin requirements in accordance with the latest version of the AMS Master Solicitation for Commodity Procurement – Domestic Programs (MSCP-D), with further clarifications shown below.

- 1. All fruit, vegetable, and nut commodities purchased for the USDA Commodity Procurement Program must be 100 percent grown in the United States. This means that products shall have originated entirely from crops grown, processed, and packed in the United States, its territories or possessions, the Commonwealth of Puerto Rico, or the Trust Territories of the Pacific Islands (hereinafter referred to as the United States) in accordance with responsible commercial practices, during the packing season, and from the crop year(s) specified in the USDA-AMS Commodity Procurement Program Commodity Specification, or Solicitation.**
- 2. When requested, contractors will make all paperwork available to USDA that confirms 100% domestic origin traceback from the destination or final package (whichever is applicable), to the origin orchard/field/vineyard/farm/etc., including all steps in the process.**
- 3. If the contractor handles any commodity originating from sources other than the United States, the contractor must have a written plan to segregate the commodity. This segregation plan will include an identification and record system for all**

commodities to ensure they are completely segregated and cannot be used to fulfill purchase orders awarded by USDA. Such segregation plan must be made available, within 10 days of purchase order award, to representatives of the Agricultural Marketing Service (AMS).

4. The responsibility for compliance is borne by the contractor, regardless of whether the product was processed/packed in their facility or if it originated from other sources (i.e., subcontractors and suppliers). If a contractor receives crops or products originating from other sources, it is up to the contractor to obtain proof of domestic origin compliance from those sources.
5. Examples of documentation submitted may include but are not limited to harvest documentation, receipts for raw product, storage records, production or packing records, product blend (formulation) records, product coding explanation (i.e., day code, lot number, pack date etc.), finished product warehousing records, shipping records, Bill of Lading signed by the recipient, or other documentation or evidence that clearly establishes the product's domestic origin from the originating orchard/field/vineyard/farm/etc. to its final destination including all steps in the process.

NOTE: Grower lists/locations alone do not prove product was supplied by the growers listed or originated from the grower locations. The contractor will specify the growers who provided the product. This must be substantiated by documentation.

6. An acceptable domestic origin verification traceback must include the following in addition to documentation establishing domestic origin:
 - Signed Exhibit 1 Domestic Origin Certification.
 - Table of Contents.
 - Narrative or flow chart explaining the process and documentation provided.
 - The narrative or flow chart establishes the process from field to destination, documentation substantiates that process proving domestic origin.
 - An explanation of the code/ lot number (Code Breakdown) where applicable.
 - SCI Inspection Certificate.
 - Each page should be numbered and referenced in Table of Contents.
 - All pertinent information should be highlighted on each document.
 - Documentation must be clear and concise and must relate directly to the code or load being traced.
 - Trace information submitted must include the physical location of the originating field, farm, orchard, or vineyard. P.O. Boxes are NOT acceptable. Physical Address or GPS coordinates are required.

NOTE: Failure to comply with the above requirements, or any submittals consisting of mass unorganized “data dumps” will not be reviewed by SCI and final statuses will be reported to the Commodity Procurement representative as “Incomplete”.

- 6. Such records must be available for review by the Government in accordance with FAR 52.214-26. In the event of an audit, AMS auditors will examine as many codes as is necessary to verify compliance.**
- 7. Self-certifications by contractors and subcontractors will not be accepted.**
- 8. Failure to observe this requirement may lead to suspension or debarment, purchase order termination, and penalties at Title 18, Section 1001 of the U.S. Code concerning falsification of information.**

Packing Season

All tree nuts must be from the current packing season/crop year, unless otherwise specified in the applicable Solicitation/IFB.

Shipping and Storage Temperature

The packaged nuts must be held, tendered, transported, and stored at the temperature stated in the Individual Commodity Specifications. Under temporary conditions, such as what may occur at the time of loading or unloading, the product temperature may exceed the temperature requirement. However, any lot exceeding the specified temperature by five (5) degrees Fahrenheit (F.) at the time of loading and/or receipt at final destination may be rejected by the recipient.

LABELS AND PACKAGING

Primary Containers (Packages and Labeling)

Vendors have the option to use commercial labeling and packaging which meets all applicable FDA requirements and contains a code which allows traceability of the product in the event of a recall, or they may use non-commercial packaging and labeling as specified in the Master Solicitation.

The processors' own commercially acceptable “brand” labels may be used on all Solicitations/IFBs. Distributor's “brand” labels are not acceptable.

All products must be packed in new, commercially acceptable primary containers (packages). Tree Nuts must be packed only in the container size and type specified in the applicable Solicitation/IFB. The primary package must be suitably code marked so that the product can be identified with related inspection certificates.

Product packed in bags must be effectively heat sealed.

For packages **3 pounds or less**, labels must also meet the following formatting criteria:

- Must include, at a minimum, Two (2) colors, in addition to black and/or white.
- Must incorporate a graphic (photo or illustration) depicting the product/contents on the principal display panel if the packages are not clear or contain an adequate viewing window.
- Suitably code marked to allow traceability of the product in the event of a recall and, so that the product can be identified with related inspection certificates.

Secondary Containers (case) for Commercial Labels

Primary containers must be further enclosed within new, corrugated fiberboard cartons (cases) acceptable by common or other carriers for safe storage and transportation to destinations.

Case flaps, gaps, and other openings may not exceed 1 inch and must be fully sealed with tape. The tape used must be clear and of commercially acceptable width and strength. The tape must extend at least two inches down the sides or ends.

Mixing and matching of commercial and non-commercial labeling methods will not be acceptable.

Two or more different commercial labels will not be acceptable within a shipping unit (truck load).

Secondary Containers (case) for Non-Commercial Labels

Primary packages with non-commercial labels must be further enclosed within new, corrugated fiberboard cartons (cases) acceptable by common or other carriers for safe transportation to destinations.

Case flaps, gaps and other openings may not exceed 1 inch and must be fully sealed with tape. The tape used must be clear and of commercially acceptable width and strength. The tape must extend at least two inches down the sides or ends.

Cases must be marked in such a manner that they contain all the required symbols, statements and information contained in Exhibits 1, 2 or 3 as applicable.

Use of USDA Symbol is optional.

Cases may be marked by printing, stamping, stenciling or by preprinted, self-adhesive stickers. Self-adhesive stickers must be affixed to the case in such a manner that they cannot be removed intact.

Exact arrangement and adherence to font size is not required. The case markings must be clearly marked, easily read, and substantially the same as specified in Exhibit 1, 2 or 3 as applicable.

Exhibit 3 shows an alternative placard that may be applied to a non-commercial, new, corrugated fiberboard case acceptable by common or other carriers for safe transportation to destinations. This placard must be affixed to the case in such a manner that it cannot be removed intact.

Cases must have the recycling statement shown in Exhibit 5, “Please Recycle” Symbol and Statement or Exhibit 6, “Corrugated Recycles” Symbol and Statement.

UNIVERSAL PRODUCT CODES (UPC)

Contractor UPCs are acceptable for primary containers with commercial labels and/or secondary fiberboard cases enclosing commercially labeled products.

UPCs are not required for commercial labeling with tray pack shipping containers.

Products with alternative, non-commercial labels must use the UPCs listed in Exhibit 4 on the primary and secondary containers.

PALLETIZATION REQUIREMENTS

Pallets

Products must be on 48 X 40-inch, non-reversible, flush stringer, and four-way entry. New pallets must be good quality wood. Used pallets must be No.1 hardwood or its equivalent in new softwood. **Broken or damaged pallets are unacceptable; however, broken or damaged pallets may be repaired with No.1 hardwood or its equivalent in new softwood.** If pallet exchange is desired, the contractor shall arrange for pallet exchange with consignees. USDA is in no way responsible for the arrangement of pallet exchange.

Unitization

Each delivery unit of Tree Nuts must be unitized. Shipping cases must be stacked and secured from top to bottom, so that each container and layer of containers becomes an integral part of the pallet. Either stretch wrapping with plastic film or “lock ‘n pop” is acceptable. The palletized product must be loaded in the conveyance in such a way that will prevent shifting and damage to the containers of product.

INDIVIDUAL COMMODITY SPECIFICATIONS

All Tree Nuts must be so treated as to achieve a 4-log reduction of Salmonella bacteria by at least one of the following means: Propylene Oxide (PPO), steam treatment, or heat treatment, such as roasting, drying, pasteurization, or other validated methods. Treatments must occur as near as possible but not exceed 45 calendar days prior to final packaging. Verification that such treatment has been performed must be provided to the SCI Federal or Federal-State inspector.

Shelled Almonds

1. Grade: U.S. No. 1 or better as specified in the U.S. Standards for Grades of Shelled Almonds with the following exceptions:

- a. Mission type must meet all the requirements of U.S. No. 1 grade with an additional 10 percent chip and scratch allowance (20% total).

2. Styles:

- a. Whole Natural (Pasteurized)
 - b. Whole Roasted

NOTE: Natural and Roasted styles may not be intermingled within a truckload.

3. Types (Classification): Nonpareil, California, or Mission

4. **Size: Whole style: The following count ranges per ounce are permissible: 18/20, 20/22, 23/25, 25/27, 27/30, 30/32, 32/34, 34/36, 36/40, 34/40, 40/50.**

- a. **When a range in count is specified, the whole kernels shall be fairly uniform in size, and the average count per ounce shall be within the range specified. Doubles and broken kernels shall not be used in determining counts.**
 - b. **Sizes designations may not be intermingled within a truckload.**

5. **Aflatoxin, Analytical, and Microbiological Requirements and Methods**

All samples must meet the following requirements:

Analysis	Requirement	Method
Aflatoxins	<15 ppb	AOAC 991.31 or equivalent
Moisture	Roasted - ≤ 3.5% Natural (Pasteurized) - ≤ 6.5%	AOAC 925.40 or equivalent method
Free Fatty Acids (FFA as oleic)	≤ 1.50%	AOAC 940.28 or equivalent method
Peroxide value (PV)	≤ 5.0 meq peroxide/kg oil	AOAC 965.33 or equivalent method
<i>Aerobic Plate Count</i>	< 10,000 CFU/g	AOAC 996.23, 990.12, or equivalent
<i>Salmonella spp. (375g)</i>	Negative	BAM Ch 5; AOAC 2013.09 or equivalent
<i>Listeria spp. (375g)</i>	Negative	AOAC 2016.08, 2013.10

		or equivalent
<i>Staphylococcus aureus</i>	< 10 CFU/g or less than 3/g using MPN technique	BAM Ch 12; AOAC 2003.07 or equivalent
<i>Escherichia coli</i>	Negative	BAM Ch 4; AOAC 991.14 or equivalent
Yeast & Mold	< 1,000 CFU/g	BAM Ch 18; Pour Plate, AOAC 997.02, 2014.05, or equivalent

Aflatoxin testing ONLY may be certified by a USDA approved laboratory. A Certificate of Conformance for analysis must be furnished to the Federal or Federal-State Inspector prior to issuance of inspection certificate and is valid for 30 calendar days. USDA approved laboratories can be found at the following link: <https://www.ams.usda.gov/services/lab-testing/mycotoxins>.

6. Roasted can be nitrogen flushed or vacuum packed.
7. Pack Size: 12/2 lb. bags.
8. **Storage and Shipping: The packaged Almonds must be stored and shipped at an air temperature not to exceed 50 degrees F.**
9. **Truckload case count: 1,540 per truckload.**
10. **Bulk Almonds for further processing into fruit and nut mix:**

Almonds packed in bulk containers destined for further processing into fruit and nut mix may be inspected to the quality requirements of a Solicitation, after roasting or pasteurization, prior to final packaging at an applicant's/vendor's request. If the bulk containers are inspected for quality requirements at the bulk supplier's facility or any location prior to the final packager's facility, the product must be PLI'd and received intact by a USDA employee at the receiving facility. The official sampling for Aflatoxin, Analytical, and Microbiological analyses will take place at the location where the final packaging occurs. For shipments of almonds between the supplier and final packaging point, the bulk containers may be of any size which is mutually agreeable between both parties.

Filbert (Hazelnut) Kernels

1. **Grade: Oregon No. 1, as specified in the Oregon Grade Standards Hazelnut (Filbert) Kernels.**
2. **Styles:**

a. **Natural (Pasteurized).**

b. **Roasted (or Dried).**

NOTE: Natural and Roasted styles may not be intermingled within a truckload.

3. **Size: Minimum diameter 10mm, maximum diameter 16mm**
4. **Texture: Smooth to touch with soft flaky skin and meats are firm and crunchy.**
5. **Flavor: Clean, typical of hazelnuts. No musty, rancid, bitter, or other off flavors or odors.**
6. **Aflatoxin, Analytical, and Microbiological Requirements and Methods**

All samples must meet the following requirements:

Analysis	Requirement	Method
Aflatoxins	<15 ppb	AOAC 991.31 or equivalent
Moisture	Roasted (or dried) - $\leq 4\%$ Natural (Pasteurized) - $\leq 6\%$	AOAC 925.40 or equivalent method
Free Fatty Acids (FFA as oleic)	$\leq 1.50\%$	AOAC 940.28 or equivalent method
Peroxide value (PV)	<10 meq peroxide/kg oil	AOAC 965.33 or equivalent method
Sodium	No Salt Added	AOAC 985.35 or equivalent
<i>Aerobic Plate Count</i>	< 10,000 CFU/g	AOAC 996.23, 990.12, or equivalent
<i>Salmonella spp. (375g)</i>	Negative	BAM Ch 5; AOAC 2013.09 or equivalent
<i>Listeria spp. (375g)</i>	Negative	AOAC 2016.08, 2013.10 or equivalent
<i>Staphylococcus aureus</i>	< 10 CFU/g or less than 3/g using MPN technique	BAM Ch 12; AOAC 2003.07 or equivalent
<i>Escherichia coli</i>	Negative	BAM Ch 4; AOAC 991.14 or equivalent
Yeast & Mold	< 1,000 CFU/g	BAM Ch 18; Pour Plate, AOAC 997.02, 2014.05, or equivalent

7. **Pack Size: 24/1 lb. bags.**

8. **Storage and Shipping:** The packaged Hazelnuts must be stored and shipped at an air temperature not to exceed 40 degrees F.

9. **Truckload case count:** 1,540

Pecan Pieces

1. **Grade:** U.S. Extra Fancy as specified in the United States Standards for Grades of Shelled Pecans.

2. **Size:** 3/8 inch or larger. A maximum of 15% (by weight) may pass through a 3/8-inch opening.

3. **Color:** Light Amber to Amber

4. **Aflatoxin, Analytical, and Microbiological Requirements and Methods**

All samples must meet the following requirements:

Analysis	Requirement	Method
Aflatoxins	<15 ppb	AOAC 991.31 or equivalent
Moisture	4.0- 4.6%	AOAC 925.40 or equivalent method
Oil Content	≤ 65.0%	
Free Fatty Acids (FFA as oleic)	≤ 0.60%	AOAC 940.28 or equivalent method
Peroxide value (PV)	≤ 5.0 meq peroxide/kg oil	AOAC 965.33 or equivalent method
<i>Aerobic Plate Count</i>	< 10,000 CFU/g	AOAC 996.23, 990.12, or equivalent
<i>Salmonella spp. (375g)</i>	Negative	BAM Ch 5; AOAC 2013.09 or equivalent
<i>Listeria spp.(375g)</i>	Negative	AOAC 2016.08, 2013.10 or equivalent
<i>Staphylococcus aureus</i>	< 10 CFU/g or less than 3/g using MPN technique	BAM Ch 12; AOAC 2003.07 or equivalent
<i>Escherichia coli</i>	Negative	BAM Ch 4; AOAC 991.14 or equivalent
Yeast & Mold	< 1,000 CFU/g	BAM Ch 18; Pour Plate, AOAC 997.02, 2014.05, or equivalent
Coliform	≤100 cfu/g	BAM Ch 4; AOAC 991.14 or equivalent

5. **Package size: 24/1 lb. bags.**
6. **Storage and Shipping: The packaged Pecans must be stored and shipped at an air temperature not to exceed 45 degrees F.**
7. **Truckload case count: 1,656 cases.**

Pistachio Nuts in the Shell

1. Grade: U.S. Extra No. 1 as specified in the United States Standards for Grades of Pistachio Nuts in the Shell.
2. Size: Large – 21 to 25 average number of nuts per ounce.
3. **Pistachios must be naturally split.**
4. **Aflatoxin, Analytical, and Microbiological Requirements and Methods**

All samples must meet the following requirements:

Analysis	Requirement	Method
Aflatoxins	<15 ppb	AOAC 991.31 or equivalent
Moisture	< 7.0 %	AOAC 925.40 or equivalent method
Free Fatty Acids (FFA as oleic)	≤ 1.00%	AOAC 940.28 or equivalent method
Peroxide value (PV)	≤ 5.0 meq peroxide/kg oil	AOAC 965.33 or equivalent method
Sodium	≤ 120 mg/oz	AOAC 985.35 or equivalent
<i>Aerobic Plate Count</i>	< 10,000 CFU/g	AOAC 996.23, 990.12, or equivalent
<i>Salmonella spp. (375g)</i>	Negative	BAM Ch 5; AOAC 2013.09 or equivalent
<i>Listeria spp.(375g)</i>	Negative	AOAC 2016.08, 2013.10 or equivalent
<i>Staphylococcus aureus</i>	< 10 CFU/g or less than 3/g using MPN technique	BAM Ch 12; AOAC 2003.07 or equivalent
<i>Escherichia coli</i>	Negative	BAM Ch 4; AOAC 991.14 or equivalent
Yeast & Mold	< 1,000 CFU/g	BAM Ch 18; Pour Plate,

		AOAC 997.02, 2014.05, or equivalent
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Aflatoxin testing ONLY may be certified by a USDA approved laboratory. A Certificate of Conformance for analysis must be furnished to the Federal or Federal-State Inspector prior to issuance of inspection certificate and is valid for 30 calendar days. USDA approved laboratories can be found at the following link: <https://www.ams.usda.gov/services/lab-testing/mycotoxins>.

5. Pack size (as specified in the Solicitation/IFB):
 - a. 25/1 lb. bags
 - b. 12/2 lb. bags
6. **Storage and Shipping: The packaged Pistachios must be stored and shipped at an air temperature not to exceed 40 degrees F.**
7. Truckload case count: 1,640 cases

Shelled Walnuts

1. Grade: U.S. Commercial as specified in the U.S. Standards for Grades of Shelled Walnuts.
2. Variety: English or Persian varieties of (*Juglans regia*).
3. Size Classification: Must be - Pieces, or Pieces and halves, or Halves. (No mixing of size designations).
4. Color:
 - a. Light amber or lighter.
 - b. Red (no color requirements). "Red" color shall not be mixed with "light amber," or lighter colors.
5. Flavor/odor: Must have good flavor and odor and be free of any off or objectionable flavors and odors, such as rancidity.
6. Naturally derived and may be antioxidant coated.
7. **Aflatoxin, Analytical, and Microbiological Requirements and Methods**

All samples must meet the following requirements:

Analysis	Requirement	Method
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Aflatoxins	<15 ppb	AOAC 991.31 or equivalent
Moisture	< 4.3%	AOAC 925.40 or equivalent method
Free Fatty Acids (FFA as oleic)	≤ 1.00%	AOAC 940.28 or equivalent method
Peroxide value (PV)	≤ 2.0 meq peroxide/kg oil	AOAC 965.33 or equivalent method
<i>Aerobic Plate Count</i>	< 10,000 CFU/g	AOAC 996.23, 990.12, or equivalent
<i>Salmonella spp. (375g)</i>	Negative	BAM Ch 5; AOAC 2013.09 or equivalent
<i>Listeria spp.(375g)</i>	Negative	AOAC 2016.08, 2013.10 or equivalent
<i>Staphylococcus aureus</i>	< 10 CFU/g or less than 3/g using MPN technique	BAM Ch 12; AOAC 2003.07 or equivalent
<i>Escherichia coli</i>	Negative	BAM Ch 4; AOAC 991.14 or equivalent
Yeast & Mold	< 1,000 CFU/g	BAM Ch 18; Pour Plate, AOAC 997.02, 2014.05, or equivalent

8. **Pack Size: 24/1 lb. bags.**
9. **Storage and Shipping: The packaged Walnuts must be stored and shipped at an air temperature not to exceed 40 degrees F.**
10. **Truckload case count: 1,656 cases.**
11. **Bulk Walnuts destined for further processing into fruit and nut mix:**

Walnuts packed in bulk containers destined for further processing into fruit and nut mix may be inspected to the quality requirements of a Solicitation, after pasteurization, prior to final packaging at an applicant's/vendor's request. If the bulk containers are inspected for quality requirements at the bulk supplier's facility or any location prior to the final packager's facility, the product must be PLI'd and received intact by a USDA employee at the receiving facility. The official sampling for Aflatoxin, Analytical, and Microbiological analyses will take place at the location where the final packaging occurs. For shipments of walnuts between the supplier and final packaging point, the bulk containers may be of any size which is mutually agreeable between both parties.

INSPECTION AND CERTIFICATION

Requirements

Representatives of the AMS, Specialty Crops Program, SCI Division (USDA Inspector) must perform the inspection. See the Master Solicitation. All expenses incurred including but not limited to inspection, samples taken for inspection, mailing of review samples submitted for evaluation, and laboratory analysis required for testing must be for the account of the Contractor.

The Tree Nuts must be inspected, certified, and Positive Lot Identification (PLI) made by the Federal or Federal-State Inspection Service in accordance with the Agricultural Marketing Act of 1946. The acceptability of the quality and packaging of the product must be evidenced by certificates issued by the Federal or Federal-State Inspection Service. No product will be shipped unless the Federal or Federal-State Inspection Service informs the Contractor that a designated lot is acceptable. Notice by the Federal or Federal-State Inspection Service that a designated lot scheduled for shipment does not meet requirements of the purchase order will constitute rejection of such lot.

Whether each lot offered meets the product and container requirements of the solicitation must be determined on the basis of official representative sample units. Representative sample units will be graded according to the Regulations Governing Fresh Fruits, Vegetables, and Other Products (Inspection, Certification, and Standards) (7 C.F.R. part 51), and United States Standards for Condition of Food Containers (7 C.F.R. part 42.140), effective on the date of the Solicitation/IFB.

Inspection and Certification for Grade must be performed on finished product during In-line inspection or via Lot inspection with the exception of bulk tree nuts destined for further processing into fruit and nut mix. Inspections must be performed within 30 days prior to shipment of all Tree Nuts.

Procedures

The Contractor must give the USDA Inspection office at least 72 hours advance notice when scheduling lot inspection service and, **at least 7 days advanced notice when scheduling in-line inspection service or inspection service where out of state travel is required.** Contractors are encouraged to submit requests for inspection in writing with verifiable receipt notice, such as email, to alleviate possible miscommunication.

Laboratory Tests

The contractor must allow 14 calendar days after product sampling for laboratory tests to be completed and returned (where applicable).

All samples for Aflatoxin, Analytical, and Microbiological testing must be drawn by the SCI Federal or Federal-State Inspection Service or under the direct supervision of the SCI Federal or Federal-State Inspection Service and, unless otherwise specified in the Individual Commodity Specifications or IFB, certified by the USDA National Science Laboratories or Safe Food Alliance. Samples will be drawn at the time of inspection for Grade on finished product during In-line inspection or Lot inspection as applicable. A Certificate of Conformance for Analysis must be furnished to the Federal or Federal-State Inspector prior to issuance of inspection certificate and is valid for 30 calendar days.

Results and/or average results of any re-testing performed for failed Aflatoxin, Analytical, and Microbiological analysis will not be accepted.

Contact information

National Science Laboratories, Laboratory Approval and Testing Division Science & Technology Program

801 Summit Crossing Place, Suite B Gastonia, NC 28054

Phone: (704) 867-3873 (Main)

Phone: (704) 833-1525 (Direct)

Fax: (855) 296-1230

Link to Safe Food Alliance: <https://safefoodalliance.com/>

Link for USDA approved laboratories or for USDA laboratory approval for Aflatoxin: <https://www.ams.usda.gov/services/lab-testing/aflatoxin>

FAILURE TO MEET SPECIFICATIONS

Any lot which fails applicable specifications prescribed herein will be rejected as not acceptable for delivery. If any lot of Tree Nuts fails to meet the product or packaging requirement, the Contractor may request in writing that USDA accept delivery of the lot. USDA may, at its option, accept delivery, provided that the purchase price is the purchase order price less a discount, to be determined by the Contracting Officer.

EXHIBITS**Exhibit 1 - Required Markings for Non-Commercial Shipping Containers**

(All printing to be in black ink)

<u>BOTH SIDE PANELS</u>	<u>BOTH END PANELS</u>
PRODUCT NAME	PRODUCT NAME
1/ 2/ USDA SYMBOL – <u>USDA Symbol is Optional</u>	PURCHASE ORDER NO. 3/ 4/
STORE IN A COOL DRY PLACE	
5/	

Product name must be printed or stenciled on a separate line in letters at least three- fourths inch high, and all other information must be in letters less than three-fourths inch but at least three-eighths inch high. The USDA Food Symbol must be printed, stamped, or labeled and be of sufficient size to stand out prominently. Case markings must be limited to case codes and those contained in this Exhibit.

- 1/ Insert any additional product style, pack, packing media, or further definition as applicable; (i.e. Sliced, Cut, Chopped, etc.).
- 2/ Insert the size and number of packages per case, i.e. 24/1, 30 pound.
- 3/ Insert the last five digits of the purchase order number.
- 4/ Insert name of Packer and Packer's Address - City, State, and Zip Code. This information can be placed on the end panels or the side panels.
- 5/ Insert Universal Product Code (see Exhibit "4").

Recycle symbols and statements can be placed on bottom panels (Exhibit "5" and "6").

Exhibit 2 - Alternative Label for Shipping Containers
(Includes all Required Information)



USDA Symbol is Optional

Product Name

Pack Size/Number

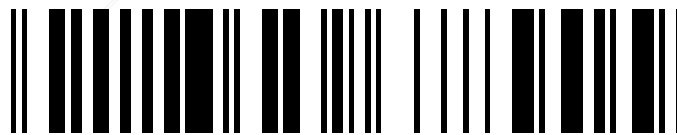
per case

Purchase Order #

Packed by: ABC Growers

Any Town, CA 99999

STORE IN A COOL DRY PLACE



1234567891012345678910

Exhibit 3 - Sample Alternative Label for Shipping Containers



USDA Symbol is Optional

**Shelled
Walnuts**

30-pounds

Purchase Order Number XXXX

Packed by: ABC Growers

Any Town, CA 99999

STORE IN A COOL DRY PLACE

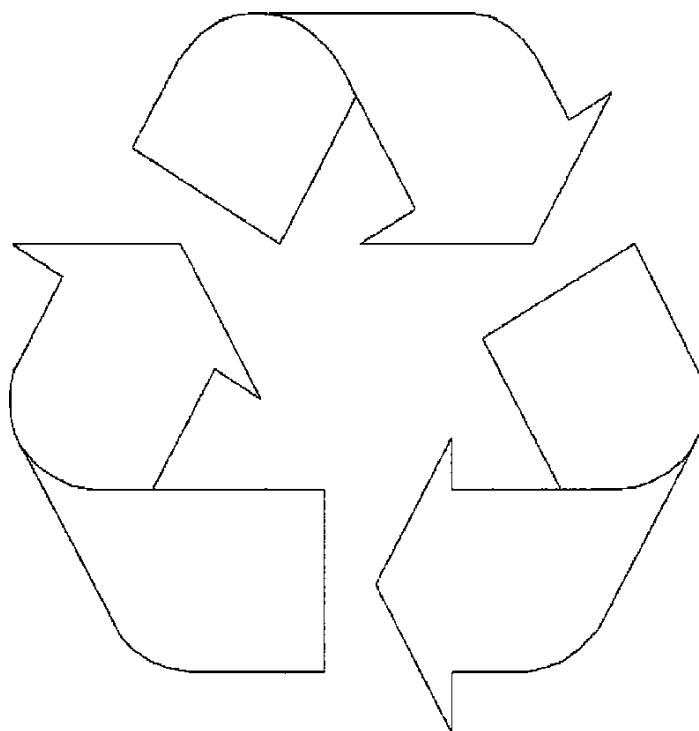


1 11 07 15001 01434 1

Exhibit 4 - Universal Product Codes

Tree Nuts	WBSCM Material	Primary Container	Secondary Container
Almonds Roasted Whole Shelled (12/2 lb.)	100393	7 15001 00393 5	1 07 15001 00393 2
Almonds Natural Whole Shelled (12/2 lb.)	100907	7 15001 00907 4	1 07 15001 00907 1
Hazelnuts (24/1lb.)	111172	7 15001 11172 2	1 07 15001 11172 9
Pecan Pieces (24/1 lb.)	111101	7 15001 11101 2	1 07 15001 11101 9
Pistachios In-Shell (25/1 lb.)	111078	7 15001 11078 7	1 07 15001 11078 4
Pistachios In-Shell (12/2 lb.)	111090	7 15001 11090 9	1 07 15001 11090 6
Walnut Eng PCS (24/1 lb.)	100908	7 15001 00908 1	1 07 15001 00908 8

Exhibit 5 - “Please Recycle” Symbol and Statement



**PLEASE
RECYCLE**

Exhibit 6 - “Corrugated Recycles” Symbol and Statement



**Corrugated
Recycles**

Exhibit 7 - USDA Symbol

The USDA Symbol is Optional

